§ 888.1 *General.* * * *

(b) In any case where Air Force personnel have any financial interest in any business entity, or have arranged or are negotiating for their subsequent employment by such entity, they are disqualified from representing the Air Force in dealings of any kind with such entity. Personnel charged with the administration of §§ 804.201 to 804.205, who own stock in or are officers of an insurance company, must scrupulously avoid negotiating with such company in respect to granting authorization to solicit sales. The same restriction will apply in the case of personnel having a financial interest in any other business enterprise which deals with Air Force personnel on an individual basis.

* * * * *

§ 888.2 *Statutory provisions.* * * *

(c) *Statutory provisions specifically applying to retired regular officers.* Retired officers are "officers of the United States" for the purpose of bringing them within the statutes cited in paragraph (a) of this section,[2] with the exception of section 281, Title 18, United States code (sec. 1, 62 Stat. 697 as amended 18 U. S. C. 281) which exempts retired officers not on active duty from its application, provided that they may not represent any person in the sale of anything to the Government through the department in whose service they hold a retired status; and section 283, Title 18, United States Code (sec 1, 62 Stat. 697 as amended 18 U. S. C. 283) which exempts retired officers not on active duty from its application, provided that they may not prosecute a claim against the Government, within 2 years after their retirement, involving the department in which they hold retired status, or prosecute a claim involving matters with which they were directly connected while on active duty. Section 1309, act August 7, 1953, (67 Stat. 437; 5 U. S. C. 59c) prohibits payment from appropriated funds to any officer on the retired list of the Regular Air Force for a period of 2 years after his retirement, who for himself or for others is engaged in the selling of or contracting for the sale of or negotiating for the sale of any supplies or war materials to any agency of the Department of Defense, the Coast Guard, the Coast and Geodetic Survey, or the Public Health Service.

* * * * *

§ 888.8 *Prohibition of contributions or presents to superiors.* No officer, clerk, or employee in the United States Government employ shall at any time solicit contributions from other officers, clerks, or employees in the Government service for a gift or present to those in a superior official position; nor shall any such officials or clerical superiors receive any gift or present offered or presented to them as a contribution from persons in Government employ receiving a less salary than themselves; nor shall any officer or clerk make any donation as a gift or present to any official superior. Every person who violates this section shall be summarily discharged from the Government employ. (R. S. 1784; 5 U. S. C. 113).

§ 888.9 *Use of military titles in connection with commercial enterprises.* (a) Regular personnel, retired and Reserve component personnel on extended active duty, officer and enlisted, shall be prohibited from using their military titles in connection with any commercial enterprise. Authorship of any material for publication shall be specifically exempted from this provision, subject to existing regulations.

(b) Retired personnel on inactive duty, both Regular and those of the Reserve components, officer, and enlisted, shall be permitted to use their military titles in connection with commercial enterprises.

(c) Reserve component personnel on inactive duty, officer and enlisted, shall be permitted to use their military titles in connection with commercial enterprises.

§ 888.10 *Civil employment of military personnel.* Officers of the Air Force may not be employed in civil works or internal improvements, nor be permitted to engage in the service of any corporation if such extra employment requires that he shall be separated from his organization or interferes with the performance of military duty (R. S. 1224; 10 U. S. C. 495). No enlisted man in the active service of the United States in the Air Force may be detailed, ordered, or permitted to leave his post to engage in private pursuits for hire when the same shall interfere with the customary employment and regular engagement of local civilians in the respective arts, trades, and professions. (Sec. 35, act June 3, 1916, 39 Stat. 188; 10 U. S. C. 609.)

* * * * *

(AFR 30-30B, July 14, 1955) (R. S. 161, sec. 202, 61 Stat. 500, as amended; 5 U. S. C. 22, 171a. Statutory provisions interpreted or applied are cited to text in parentheses)

[SEAL] E. E. TORO,
Colonel, U. S. Air Force,
Air Adjutant General.

[F. R. Doc. 55-7840; Filed, Sept. 28, 1955; 8:45 a. m.]

[2] It should be noted, however, that section 434, Title 18, United States Code (sec. 1, 62 Stat. 703; 18 U. S. C. 434) relates to representing the Government in transacting business with a private concern and section 1914, Title 18, United States Code (sec. 1, 62 Stat. 793; 18 U. S. C. 1914) relates to receiving compensation from a private source in connection with services performed for the Government, and, therefore, neither of these provisions applies to a retired officer who is not representing or performing services for the United States.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

[Circular 1935]

PART 257—SALE OR LEASE OF SMALL TRACTS, NOT EXCEEDING FIVE ACRES, FOR RESIDENCE, RECREATION, BUSINESS, OR COMMUNITY SITES

APPLICATION; GENERAL PROCEDURE

A new paragraph (e) reading as follows, is added to § 257.6. *Application; general procedure.*

(e) An application on Form 4-772 will not be accepted, will not be considered as filed, and will be returned to the applicant if:

(1) The land description in the application does not conform with the classification order or official plat of survey, or if the lands are unclassified and unsurveyed, the metes and bounds description is inadequate to permit ready and accurate identification of the tract (see paragraph (b) of this section).

(2) The application is not accompanied by the filing fee of $10 and the advance rental required by §§ 257.8 and 257.9, namely, the advance rental specified in the classification order or if the lands are not classified, $100 for business sites and $15 for other sites.

(3) The application is not signed by the applicant, or

(4) The lands applied for have either been—

(i) Classified for sale at public auction,

(ii) Classified for lease but not opened to application, or

(iii) Officially recorded as under consideration for small tract classification (see § 257.5).

(52 Stat. 609, as amended; 43 U. S. C. 682a. Interprets or applies R. S. 2478; 43 U. S. C. 1201)

DOUGLAS MCKAY,
Secretary of the Interior.

SEPTEMBER 23, 1955.

[F. R. Doc. 55-7842; Filed, Sept. 28, 1955; 8:46 a. m.]

Appendix C—Public Land Orders

[Public Land Order 1226]

[Misc. 1510530]

CALIFORNIA

REVOKING EXECUTIVE ORDER NO. 6331 OF OCTOBER 11, 1933, WHICH WITHDREW LANDS FOR USE AS STATE CONSERVATION CAMP; PARTIALLY REVOKING EXECUTIVE ORDER OF APRIL 17, 1926, CREATING PUBLIC WATER RESERVE NO. 107

By virtue of the authority vested in the President by Section 1 of the act of June 25, 1910 c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 6331 of October 11, 1933, which temporarily withdrew the following-described public lands in California for use as a State conservation camp in connection with cooperative Civilian Conservation Corps work, is hereby revoked:

MOUNT DIABLO MERIDIAN

T. 43 N., R. 7 W.,
Sec. 18, NE¼NE¼.

The area described contains 40 acres.

The Executive order of April 17, 1926, creating Public Water Reserve No. 107, is hereby revoked so far as it affects the above-described lands.

The land is located seven miles east and two miles west of Fort Jones. An unimproved dirt road passes through the southeast part. The topography is hill slope northwest of Cedar Gulch, which

flows southwesterly. Vegetation consists of open ceanothus brush interspersed with grass-land on south slopes, and yellow pine timber and reproduction in bottom and north slopes. The land is not suitable for agriculture.

No application for the land may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the land has already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The land will not be subject to occupancy or disposition until it has been classified.

Subject to any existing valid rights and the requirements of applicable law, the lands described are hereby opened to filing of applications, selections, and locations in accordance with the following:

Applications and selections under the nonmineral public-land laws and applications and offers under the mineral-leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on October 29, 1955, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on January 28, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral-leasing laws, presented prior to 10:00 a. m. on January 28, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

Persons claiming veteran's preference rights under Paragraph (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

The lands are now open to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on January 28, 1956.

Inquiries regarding the land shall be addressed to the Manager, Land Office, Bureau of Land Management, Sacramento, California.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

SEPTEMBER 23, 1955.

[F. R Doc 55–7841; Filed, Sept 28, 1955; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Bureau of Customs

[19 CFR Part 18]

SHIPMENT OF BAGGAGE IN BOND

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that, pursuant to authority contained in sections 161 and 251 of the Revised Statutes, and sections 498, 552, and 553 of the Tariff Act of 1930, as amended (5 U. S. C. 22, 19 U. S. C. 66, 1498, 1552, 1553), it is proposed to amend §§ 18.13 and 18.14, Customs Regulations (19 CFR 18.13, 18.14), to eliminate the cording and sealing of baggage shipped in bond to a port of entry other than the port of first arrival or shipped in transit through the United States to foreign countries.

The terms of the proposed amendment, in tentative form are as follows:

Part 18, Transportation in Bond and Merchandise in Transit, is amended as follows:

1. Section 18.13 (a) is amended by deleting "under cord and seal and" from the first sentence and substituting "with the use of a".

2. Section 18.13 (b) is amended by deleting "placed on the cords back of the seal" from the second sentence and substituting "securely attached by wire or cord to the baggage".

(Secs. 498 (a), 552, 46 Stat. 728, as amended, 742; 19 U. S. C. 1498 (a), 1552)

3. The second sentence of § 18.14 is amended to read: "Such baggage shall be shipped under the regulations prescribed in the preceding section, except that the card or paster shall be printed on yellow paper and shall read "Baggage in bond for export."

(Secs. 498, 553, 46 Stat. 728, as amended, 742, as amended; 19 U. S. C. 1498, 1553)

This notice is published pursuant to section 4 of the Administrative Procedure Act (5 U. S. C. 1003). Prior to the issuance of the amendment in final form, consideration will be given to any relevant data, views, or arguments pertaining thereto which are submitted in writing to the Commissioner of Customs, Bureau of Customs, Washington 25, D. C., and received not later than 30 days from the date of publication of this notice in the FEDERAL REGISTER. No hearing will be held.

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

Approved: September 20, 1955.

DAVID W. KENDALL,
Acting Secretary of the Treasury.

[F. R. Doc. 55–7877; Filed, Sept. 28, 1955; 8:52 a. m.]

Internal Revenue Service

[26 CFR (1954) Part 1]

INCOME TAX: TAXABLE YEARS BEGINNING AFTER DECEMBER 31, 1953

SCHOLARSHIPS AND FELLOWSHIP GRANTS

Notice is hereby given, pusuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury. Prior to the final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Attention: T:P, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in section 7805 of the Internal Revenue Code of 1954 (65A Stat. 917; 26 U. S. C. 7805).

[SEAL] T. COLEMAN ANDREWS,
Commissioner of Internal Revenue.

The regulations set forth below are hereby prescribed under section 117 of the Internal Revenue Code of 1954. The rules are applicable for taxable years beginning after December 31, 1953 and ending after August 16, 1954:

Sec.
1.117 Statutory provisions; scholarships and fellowship grants.
1.117–1 Exclusion of amounts received as a scholarship or fellowship grant.
1.117–2 Limitations.
1.117–3 Definitions.
1.117–4 Items not considered as scholarships or fellowship grants.

§ 1.117 *Statutory provisions; scholarships and fellowship grants.*